

TENTATIVE RULING FOR JUNE 16, 2026

Department R12 - Judge Kory Mathewson

Ortiz v. JEP Capital, Inc., et al – CIVSB2301598

Motion: Motion to Compel Further Responses to Form Interrogatories (Set One)

Movant: Plaintiff Mynor Ortiz dba Atlantis Water Systems

Respondent: Defendant HCC Casualty Insurance Services, Inc.

RULING: Motion is Continued to: 7/13/2026. Both parties are ORDERED to properly meet and confer and to file a joint declaration as to the meet and confer efforts no later than 5 days prior to the next hearing.

HCC Casualty - to provide Order(s) and give Notice.

The disputed FROGs are Nos. 1.1, 3.1, 3.2, 3.7, 4.1, 4.2, 12.1, 12.2, 12.3, 12.6, 12.7, 14.2, 13.1, 13.2, 15.1, 16.1, 16.2, 16.3, 16.6, 50.1, 50.2, 50.3, 50.4, 50.5 and 50.6.

Plaintiff motions for the court to compel HCC Casualty to provide further responses to the subject disputed interrogatories, arguing HCC Casualty has failed to rectify their deficient responses despite multiple meet and confer attempts by Plaintiff. Plaintiff contends the subject disputed interrogatories are evasive and utilize boilerplate objections as to the request's "prematurity" and that the request is "overbroad, burdensome, and not reasonably calculated to lead to the discovery of admissible evidence." Plaintiff further requests sanctions against HCC Casualty and its counsel of record.

In Opposition, HCC Casualty argues first that Plaintiff failed to properly meet and confer prior to filing the instant Motion as required under section 2016.040 of the Code of Civil Procedure. HCC Casualty contends it was in the midst of substituting counsels due to the pending retirement of its prior defense counsel and Plaintiff sought to obtain a perceived tactical advantage by rushing to file the instant Motion without completing the meet and confer process. HCC Casualty argues Plaintiff filed and served the Motion after current counsel substituted in as counsel, but failed to meet and confer with current counsel beforehand. HCC Casualty further argues Plaintiff's meet and confer correspondence failed to specifically identify the allegedly deficient responses in its alleged meet and confer emails with prior counsel. Citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435-1439, HCC Casualty argues a failure to meet and confer prior to filing a motion to compel dictates that the motion be denied. HCC Casualty argues sanctions are proper under Code of Civil Procedure section 2023.010(i) for Plaintiff's failure to meet and confer in good faith. Further, HCC Casualty argues even if the court were to reach the merits of the instant Motion, HCC Casualty contends Plaintiff has not met his burden to demonstrate that the responses were incomplete, inadequate, or evasive. Specifically, HCC Casualty argues at the time of the request, HCC Casualty was awaiting the court's ruling on its demurrer. Further, HCC Casualty's objections on the grounds of relevancy and vagueness are well founded as Plaintiff failed to adequately define the term "incident" and the requests fail to account for the fact that HCC Casualty was not the entity that issued any policies to the Plaintiff.

Finally, as to Plaintiff's request for sanctions, HCC Casualty argues it acted with substantial justification and the amount requested by the Plaintiff is excessive.

Plaintiff replies, arguing Plaintiff repeatedly advised HCC Casualty and its counsel that its responses were deficient and as such, met and conferred in good faith. Plaintiff further points to HCC Casualty's responses in its Opposition as evidence that it is aware of the deficiencies in the subject requests. Plaintiff further contends the supplemental responses served by HCC Casualty on May 29, 2026 do not cure the deficiencies identified in Plaintiff's Motion.

Based on the foregoing arguments presented, the Court continues the instant Motion for the parties to properly meet and confer.

Plaintiff contends counsel's efforts to meet and confer satisfy the statutory requirements as she made multiple attempts to informally resolve the matter with HCC Casualty's prior counsel prior to filing the instant Motion. HCC Casualty argues no such good faith effort was made as Plaintiff failed to specifically set forth what the disputed requests were and no attempt was made to contact HCC Casualty's current counsel until after the instant Motion was filed. The level of effort at informal resolution which satisfies the "reasonable and good faith attempt" standard depends upon the circumstances. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432-433) A determination of whether an attempt at informal resolution is adequate involves the exercise of discretion and judges have broad powers and responsibility to determine what measure and procedures are appropriate. (*Id.* at p. 431.)

Here, Plaintiff's counsel's "detailed meet and confer letter" attached as Exhibit D to Hernandez's declaration fails to set forth any specific disputed requests. The "detailed" letter only substantively discusses the subject responses deficiencies in one or two sentence in the first paragraph and HCC Casualty is only discussed in conjunction with the other Carrier Defendants. Further, Hernandez's supplemental declaration confirms the first time she spoke to HCC Casualty's current counsel was on February 18, 2026, which is after the filing date of the instant Motion. Plaintiff acknowledges that supplemental responses were served on May 29, 2026, however, Plaintiff argues, without providing any specifics, that the supplemental responses remain deficient.

Consequently, the Motion is continued for the parties to properly meet and confer. Both parties are ordered to file a joint declaration as to the meet and confer efforts no later than 5 days prior to the next hearing.

As to HCC Casualty's request for sanctions under section 2023.010, subdivision (i) of the Code of Civil Procedure, the Court awards sanctions against Plaintiff and Plaintiff's counsel for \$500.00.

Dated: June 16, 2026

Judge Kory Mathewson